

Delivery/Executor Agent Agreement

This Agreement is a legally binding contract between Shree Samarth Innovative Technologies Private Limited, operating the QFREEMART platform (hereinafter, the “Company”), and the individual or entity (hereinafter, the “Agent”) engaging in the provision of delivery and executor services on the QFREEMART platform.

1. Object & Scope of Services

The Agent agrees to provide delivery and executor services to Customers and/or Vendors (merchants) using the Company’s platform. The Company’s role is to provide a platform to facilitate the connection and task management between the Agent and the Vendor. These services include, but are not limited to:

- Picking up goods or providing services as instructed by a Vendor.
- Delivering goods to the designated Customer location.
- Handling remote queue entries and queue management tasks.
- Assisting with appointment system and negotiation system tasks as required.
- Acting in a professional and ethical manner while performing services through the QFREEMART platform.

QFREEMART operates solely as a technology platform facilitating interactions between Vendors and Agents. The Company does not employ Agents, does not supervise delivery operations, and does not control the manner in which services are performed.

By creating an account, accessing the Platform, or clicking “I Agree” or similar confirmation during registration or onboarding, the user electronically agrees to be bound by this Agreement. Such electronic acceptance shall have the same legal effect as a physical signature.

2. Agent's Responsibilities and Code of Conduct

The Agent shall comply with all relevant laws, regulations, and the QFREEMART platform's code of conduct. The Agent agrees to:

- **Professionalism:** Be punctual, polite, and respectful to all Customers and Vendors.
- **Accuracy:** Ensure the correct items are picked up and delivered to the correct recipient in good condition.
- **Confidentiality & Data Privacy:** Treat all information received from the Company, Vendors, or Customers as confidential. This includes, but is not limited to, names, addresses, phone numbers, and order details. The Agent must not use or disclose this information for any purpose other than fulfilling the delivery or executor service.
- **Prohibited Activities:** Refrain from any illegal or fraudulent activities, including theft, misrepresentation, or any actions that could harm the reputation of the Company or its users.

- **Compliance:** Adhere to all applicable labor, human rights, and consumer protection laws.

3. Compensation and Payment

The Agent acknowledges that all financial settlements for services rendered are a direct and mutual agreement between the Agent and the Vendor. The Vendor is responsible for paying the Agent directly for their services, which may include **minimum delivery charges, additional delivery charges, and a delivery tip** for each order. The rates for all tasks, including variable rates based on the mode of transport (e.g., bike, truck), as well as any allowances (e.g., night, rain, difficult terrain, traffic), are to be mutually agreed upon by the Agent and the Vendor.

4. Cash on Delivery (COD) and Settlement

The Vendor shall set the Cash on Delivery (COD) limit for each Agent. The Agent is required to settle the full amount of cash received from a Customer directly with the Vendor. The Vendor will then pay the Agent their mutually agreed-upon charges and allowances. To ensure a secure settlement process, a security code must be exchanged and verified by both the Agent and the Vendor.

QFREEMART shall not be responsible for any loss, theft, misappropriation, or dispute relating to cash handled by the Agent or Vendor during COD transactions.

5. Vendor-Agent Relationship

The Agent may be a pre-existing agent of a Vendor who has registered on the platform, or they may be a new Agent selected by the Vendor from the platform's user base. Vendors are responsible for adding the Agent as a connection on the QFREEMART platform. It is the responsibility of the Vendor to perform a full background check on the Agent, including police verification, before adding them as a representative in the form of connection. Vendors can select Agents by reviewing their ratings, skills, and other relevant information provided on the platform. The Company is a facilitator and does not guarantee the performance or financial solvency of either the Vendor or the Agent. Any disputes regarding payment or service quality must be resolved directly between the Vendor and the Agent.

6. Agent as Vendor's Representative

The Agent acknowledges and agrees that while performing services under this Agreement, they act as a representative of the Vendor. This relationship applies to interactions with both the Customer and the QFREEMART platform. The Agent's role may be as a **delivery agent** for product delivery or as an **executor agent** for in-person service delivery (e.g., bridal makeup), with the latter becoming the delivery agent in a home-delivery scenario. The Agent is expected to uphold the Vendor's standards of service and conduct.

7. Identity Verification and Background Checks

For Agents providing in-home or personal services, it is a mandatory requirement to complete identity verification and provide a **police verification certificate** or equivalent background check prior to being approved for executor work. Agents must wear a company ID or present an in-app verification at every customer visit. The Company reserves the right to suspend or de-list Agents at any time for safety or background concerns.

The Vendor shall bear sole responsibility for verifying the identity, background, and suitability of any Agent added to the Platform as their representative.

8. Order Completion and Settlement Process

A delivery is considered complete **only after the successful exchange of a security code between the Customer and the Agent**. Similarly, settlement between the Vendor and the Agent is considered complete only after the successful exchange of a security code between the Vendor and the Agent.

9. Subcontracting & Authorization

The Agent may not subcontract Services without prior written consent from the Vendor and QFREEMART. If permitted, Agent remains fully responsible for any subcontractor's acts or omissions and must ensure subcontractors meet the same onboarding, insurance and background verification requirements.

10. Data Protection & Breach Notification

Each party will comply with applicable data protection laws. Agent shall access and process Personal Data only as necessary to perform services and in accordance with QFREEMART's Privacy Policy and any executed Data Processing Addendum (DPA). Agent must report any data breach affecting QFREEMART or Customers within 72 hours of discovery and cooperate with remediation, notifications and forensic investigations.

11. Insurance

At all times during the Term, the Agent shall maintain: (a) third-party public liability insurance; (b) motor vehicle insurance for any vehicle used while performing Services (as required by applicable law); and (c) personal accident insurance covering the Agent while carrying out Services. The Agent shall provide certificates of insurance and renewals upon onboarding and at any time upon QFREEMART's reasonable request. Failure to maintain the required insurance entitles QFREEMART to suspend or remove the Agent.

12. Incident Reporting

The Agent shall report to QFREEMART within 24 hours any accident, theft, property damage, customer complaint alleging harm, or law enforcement inquiry arising from Services. The Agent must fully cooperate in any investigation and supply requested evidence, including but not limited to, proof of delivery, photos, and witness information.

13. Performance & Suspension

QFREEMART may publish performance targets. Agents failing to meet targets or who receive repeated substantiated complaints may be issued a notice and required to submit a corrective action plan. Continued non-performance may result in temporary suspension or permanent de-listing. Agents have 7 days to appeal any suspension via QFREEMART's support process.

14. Compliance with Government Rules and Regulations

Both the Vendor and the Agent are individually and collectively responsible for complying with all applicable government rules and regulations, including but not limited to, vehicle registration, traffic rules, safety protocols, and professional etiquette.

15. Misconduct and Termination

Any act of **false delivery or execution, misconduct, malpractices, or violation of applicable laws** will lead to scrutiny by the Company and may result in immediate **termination of this Agreement and de-registration of the Agent from the QFREEMART platform**. The Company reserves the right to take any necessary legal action in such cases.

16. Confidential Information

The Agent acknowledges that they will have access to Confidential Information, including business strategies, technical data, pricing, customer lists, and financial information. The Agent agrees to protect this information with the same level of care as their own confidential information and not to disclose it to any third party.

17. Liability and Indemnification

The Agent assumes all responsibility and liability for any damages, losses, or injuries that occur while performing services under this Agreement. The Agent shall indemnify and hold the Company harmless from any claims, losses, or expenses (including legal fees) arising out of the Agent's actions, negligence, or breach of this Agreement.

18. Dispute Resolution

The parties will first attempt to resolve any dispute arising from this Agreement through good-faith negotiation, and then through non-binding mediation. If the dispute remains unresolved, it shall be finally resolved by arbitration in accordance with the Arbitration and Conciliation Act, 1996 (India), with the seat of arbitration in Kolhapur, Maharashtra, India. The parties may seek interim injunctive relief from the courts where necessary.

19. Relationship of the Parties

The relationship between the Company and the Agent is that of an independent contractor. Nothing in this Agreement shall be construed to create an employer-employee, partnership, or

joint venture relationship between the Company and the Agent. The Agent is solely responsible for all their own taxes, insurance, and other business expenses.

20. Term and Termination

This Agreement shall be effective upon the Agent's acceptance and shall remain in effect until terminated by either party. Either party may terminate this Agreement at any time for any reason by providing written notice to the other party. QFREEMART may immediately suspend or terminate an Agent's access to the Platform in cases involving safety concerns, fraud, misconduct, or violation of applicable laws.

21. Governing Law and Jurisdiction

This Agreement shall be governed by and construed in accordance with the laws of India. Subject to the arbitration provisions contained in this Agreement, the courts located in Kolhapur, Maharashtra, India shall have exclusive jurisdiction over any disputes arising out of or relating to this Agreement.

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